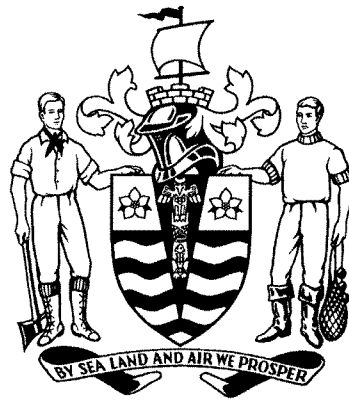


**CITY OF VANCOUVER
BRITISH COLUMBIA**



TICKET OFFENCES BY-LAW NO. 9360

TICKET OFFENCES BY-LAW

TABLE OF CONTENTS

SECTION 1 INTERPRETATION

- 1.1 Name of By-law
- 1.2 Definitions
- 1.3 Table of contents
- 1.4 Severability

SECTION 2 REGULATION OF TICKET OFFENCES

- 2.1 Designation of by-laws
- 2.2 Designation of by-law enforcement officers
- 2.3 Authorization of the use of any word or expression on a ticket
- 2.4 Ticket offence fines
- 2.5 Enforcement of ticket offences
- 2.6 Existing fines

SECTION 3 ENACTMENT

- 3. Force and effect

BY-LAW NO. 9360

A By-law to designate enforcement of certain by-law offences by ticket

THE COUNCIL OF THE CITY OF VANCOUVER, in public meeting, enacts as follows:

SECTION 1 INTERPRETATION

Name of By-law

- 1.1 The name of this By-law, for citation, is the “Ticket Offences By-law”.

Definitions

- 1.2 In this By-law:

“Chief License Inspector” means the person appointed by Council from time to time as Chief License Inspector for the city, and includes any officer, official, or employee acting on behalf of or in place of the Chief License Inspector and any property use inspector or other person authorized by Council or the Chief License Inspector to enforce by-laws;

“Medical Health Officer” means the person appointed by Council from time to time as Medical Health Officer for the city, and includes any officer, official, or employee acting on behalf of or in place of the Medical Health Officer and any environmental health inspector or other person authorized by Council, Vancouver Coastal Health Authority, or the Medical Health Officer to enforce by-laws;

“Police Officer” means a peace officer or constable as provided under the *Police Act*, and employed by the Vancouver Police Board;

“Poundkeeper” means the person appointed by Council from time to time as the Manager of Animal Control for the city, and includes any officer, official, or employee acting on behalf of or in place of the Poundkeeper and any animal control officer or other person authorized by Council or the Poundkeeper to enforce by-laws; and

“tables” mean Tables 1 to 5 set out in this By-law.

Table of contents

- 1.3 The table of contents for this By-law is for convenient reference only, and is not for assistance in interpreting or enforcing this By-law.

Severability

1.4 A decision by a court that any part of this By-law is illegal, void, or unenforceable severs that part from this By-law, and is not to affect the balance of this By-law.

SECTION 2 REGULATION OF TICKET OFFENCES

Designation of by-laws

2.1 For the purpose of section 482.1(1)(a) of the Vancouver Charter, Council designates the by-laws named in the titles to each of the tables.

Designation of by-law enforcement officers

2.2 For the purpose of section 482.1(1)(b) of the Vancouver Charter, Council designates the persons listed in Column 1 of each of the tables as by-law enforcement officers.

Authorization of the use of any word or expression on a ticket

2.3 For the purpose of section 482.1(1)(c) of the Vancouver Charter, Council designates the words or expressions listed in Column 2 of each of the tables as words or expressions to describe the offences under the by-law provisions listed in Column 3 opposite each such word or expression in Column 2.

Ticket offence fines

2.4 Council sets the fine for contravention of each by-law provision in the amount listed in Column 4 of each of the tables opposite each such provision in Column 3.

Enforcement of ticket offences

2.5 A by-law enforcement officer referred to in Column 1 of each of the tables may lay an information by means of a ticket for contravention of a by-law provision listed in Column 3 of the same table.

Existing fines

2.6 Despite anything to the contrary in the Animal Control By-law, Health By-law, License By-law, Noise Control By-law, or Street and Traffic By-law, the fine set out in each of those by-laws for contravention of a by-law provision listed in Column 3 of each of the tables does not apply if a by-law enforcement officer lays an information by means of a ticket under this By-law.

**Table 1
Animal Control By-law**

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
Police Officer	No dog licence	Section 3.1	\$250.00
Poundkeeper	Dog off leash in public	Section 4.2	\$250.00

**Table 2
Health By-law**

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
Medical Health Officer	Smoking in public place	Section 6.1	\$100.00
Police Officer	Proprietor permitting smoking	Section 6.2	\$300.00
	Urinating/defecating/expectorating	Section 4.21	\$100.00

**Table 3
License By-law**

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
Chief License Inspector	No business license	Section 3(1)	\$150.00

**Table 4
Noise Control By-law**

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
Chief License Inspector	Objectionable noise	Section 4	\$150.00
Police Officer	Refuse collection noise outside of permitted time	Section 19	\$500.00
Medical Health Officer			

Table 5
Street and Traffic By-law

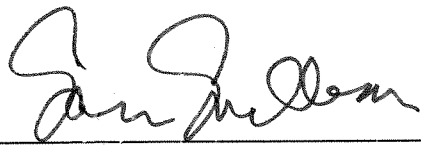
<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
Police Officer	Fighting in public	Section 69A	\$200.00
	Riding bicycle on sidewalk	Section 60	\$100.00
	No helmet	Section 60D	\$50.00
	Jaywalking	Section 12(2)	\$100.00
	Disobeying traffic sign/signal	Section 6	\$100.00

SECTION 3
ENACTMENT

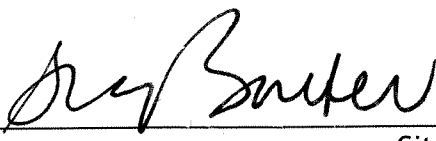
Force and effect

3. This By-law is to come into force and take effect on the date of its enactment.

ENACTED by Council this 26th day of September, 2006



Mayor



City Clerk